

Court No. - 3

Case :- WRIT - C No. - 34983 of 2021

Petitioner :- Karim Baks

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Lok Nath Shukla

Counsel for Respondent :- C.S.C.,Arti Raje

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the respondent-State and Smt. Arti Raje, learned counsel for the respondent no.2.

2. This writ petition has been filed praying for the following reliefs:-

"(i) to issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice dated 4.6.2021 issued by the respondent no.2 (Annexure No.3 to the writ petition) and the impugned recovery certificate dated 29.9.2021 issued by the respondent no.4 (Annexure no.4 to the writ petition);

(ii) to issue a writ, order or direction in the nature of mandamus commanding the respondents not to initiate any coercive measure against the petitioner for recovering the amount as per the impugned recovery notice dated 4.6.2021 issued by the respondent no.2 (Annexure No.2 to this writ petition) and the impugned recovery certificate dated 29.9.2021 issued by the respondent no.4 (Annexure no.4 to the writ petition)."

3. Learned counsel for the petitioner submits that without affording any opportunity of hearing to the petitioner to file objection under paragraph 6.8 of the Electricity Supply Code, 2005, a recovery certificate for Rs.47,780/- was issued against the petitioner.

4. Learned counsel for the respondent no.2 states that the petitioner may submit his objection under paragraph 6.8 of the Electricity Supply Code, 2005 before the respondent no.2, who shall decide it in accordance with law within a time bound period.

5. In view of the statement made by learned counsels for the parties and with their consent, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection before the respondent no.2 within three weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted, it shall be decided by the respondent no.2 in accordance with law, by a speaking and reasoned order expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

6. It is made clear that we have not expressed any opinion on merits of the case of the petitioner.

Order Date :- 12.5.2022

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